

District- Chattogram

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No 873 of 2023

Kazi Md Ahsan and others

... plaintiffs-opposite parties-petitioners

- versus-

Kazi Mozammel Haque and others

...defendants-petitioners-opposite parties

Mr Syfuzzaman, Advocate

...for the plaintiffs-opposite parties-petitioners

Mr Ali Imam Khaled Rahim, Advocate with

Mr AHM Obaydul Kabir, Advocate

... for the defendants-petitioners-opposite parties

Heard on: 05.12.2023 and 11.01.2024

Judgment on: 29.01.2024

This Rule was issued upon an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party No 1 to show cause as to why the judgment and order dated 01.12.2022 passed by the learned District Judge, Chattogram in Miscellaneous Case No 01 of 2022, filed under section 24 of the Code of Civil Procedure, allowing the same and thereby transferred Other Class Suit No 805 of 2021 from the Court of Assistant Judge, Anwara, Patiya Chouki, Chattogram to the Court of Joint District Judge, Potiya

Chouki, Chattogram, should not be set aside and/or passed such other or further orders as to this court may seem fit and proper.

During issuance of the Rule an order was passed staying operation of the impugned order.

The short facts for the purpose of disposal of the Rule are that the predecessor of the present petitioners Kazi Abdul Haque as plaintiff instituted Other Class Suit No 06 of 2014 in the Court of Joint District Judge, Patiya, Chattogrtam praying for partition of land described in the schedule to the plaint against the present opposite party No 1 and others showing suit value of taka 8,00,000.00. The present opposite party No 1 appeared in the said suit and on 14.07.2016 filed written statement denying the material allegations and prayed for saham in his favour for 1.28 acres of land. Subsequently in view of the amendment of the Suit Valuation Act enhancing the pecuniary jurisdictions of the civil courts the suit was transferred to the Court of Assistant Judge, Anwara, Patiya, Chattogram wherein the same was registered and renumbered as Other Class Suit No 805 of 2021.

Subsequently the present opposite party No 1 filed another suit being Partition Suit No 192 of 2021 in respect of same property along with some additional properties impleading the petitioners and others in the Court of Joint Distrit Judge, Patiya, Chattogram. Thereafter he

filed Miscellaneous Case No 01 of 2022 under section 24 of the Code of Civil Procedure before the learned District Judge, Chattogram for transferring the Other Class Suit No 805 of 2021 from the Court of Assistant Judge, Anwara for analogous trial with the Partition Suit No 192 of 2021, pending in the Court of Joint District Judge, Patiya. By the impugned order dated 01.12.2022 the learned District Judge, Chattogram was pleased to allow the miscellaneous case for disposal of both the suits by the Joint District Judge, Patiya.

Being aggrieved and dissatisfied with the above order dated 01.12.2022 the plaintiff-opposite parties as petitioners moved this court along with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule and order of stay.

Mr Syfuzzaman, the learned Advocate appearing on behalf of the petitioners has submitted that while the Other Class Suit No 06 of 2014 (renumbered as Other Class Suit No 805 of 2021) was at the middle stage for disposal the opposite party No 1 suddenly filed the Partition Suit No 192 of 2021 for the self same property showing higher valuation before the learned Joint District Judge, Patiya, Chattogram, though he had already prayed for saham in the Suit No 805 of 2021, and when the petitioners was preparing to file an application under section 10 of the Code of Civil Procedure to stay the subsequent Partition Suit No 192 of 2021, the opposite party No 1

filed the miscellaneous case for transfer with an ill motive and with a view to delay disposal of the earlier suit and to harass the present petitioners. But according to him, the learned District Judge passed the impugned order without applying his judicial mind and thereby committed an error of law resulting in an error in his decision occasioning failure of justice.

Mr Ali Imam Khaled Rahim the learned advocate along with Mr AHM Obaydul Kabir the learned Advocate on behalf of the opposite party No 1 having filed a counter affidavit has submitted that the plaintiff-petitioners omitted some ejmali land in the schedule of Other Class Suit No 805 of 2021 and also did not implead all the co sharers in their suit and in spite of objection filed by the opposite party No 1 the present petitioners neither brought all common properties into hotch potch nor impleaded all the necessary parties and, as such, finding no other alternative this opposite party No 1 filed the Partition Suit No 192 of 2021 bringing all common properties into hotch potch and impleading all the necessary parties in order to get an effective partition. He has further stated that both the suits are at service return stage and both the suits should be disposed of by the same court to avoid conflicting decision and for effective partition of all common properties for which learned District Judge did not

commit any error of law in passing the impugned order occasioning failure of justice.

I have heard the submissions placed by the learned Advocates for both the sides and perused the record along with the impugned judgment and order and other connected papers.

It appears that both the suits have been instituted by the contending parties for partition of land and the parties are almost same thereto. It also transpires that in as many as seventeen schedules to the plaint of subsequently instituted suit being Partition Suit No 192 of 2021 the entire lands under three schedules to the plaint of the Other Class Suit No 805 of 2021 along with additional lands have been included. Although the Other Class Suit No 805 of 2021 was instituted by the petitioners in 2014, registered as Other Class Suit No 06 of 2014 but on perusal of its order No 71 dated 27.09.2021 it appears that the same was fixed on 02.01.2022 for service return ie both the suits are actually in the same stage. It appears that learned District Judge in the impugned order stated that in order to avoid mistrial both the suits should be heard by the same court.

Considering the facts and circumstances, I am of the view that to avoid mistrial and conflicting decisions and in order to proper adjudication of matter both the suits should be tried by the same court analogously and the learned District Judge in passing the impugned

judgment and order did not commit any error of law resulting in an error in such decision occasioning failure justice, and as such, there is no substance in the Rule and accordingly, the same is liable to be discharged.

Resultantly, the Rule is discharged without any order as to cost.

The impugned judgment and order passed by the learned District Judge, Chattogram is affirmed and the order of stay granted at the time of issuance of the Rule is hereby vacated.

Let a copy of this judgment be transmitted at once.